

Terms of Service

Effective Date: June 17, 2026

Contracting party. You agree to these Terms with **PicksDb LLC**, a limited liability company formed under the laws of the **State of Colorado**, United States ("**PicksDb**," "we," "us," or "our"). General notices may be sent to support@picksdb.com. For registered-agent or formal service of process, use the address or agent on file with the Colorado Secretary of State for PicksDb LLC (or as we later publish for that purpose).

These Terms are a legal contract between you and PicksDb LLC. They are **not** personalized legal advice. **No agreement can guarantee that disputes or claims will never occur.** For questions about your specific rights or obligations, consult qualified counsel.

IMPORTANT: PicksDb is an all-sport social and creator platform for entertainment only. We are **not** affiliated with the NFL, NBA, MLB, NHL, NCAA, UFC, FIFA, any team, league, promotion, athlete, broadcaster, or sportsbook unless we say so in writing. This is NOT a gambling product and does not pay wagering winnings.

1. Purpose & Nature of Service

PicksDb is an **all-sport social and creator platform** operated by PicksDb LLC—not a single-sport or UFC-only app. Users post picks, analysis, watch-alongs, and culture content; join live chats, group chats, and threads; and subscribe to creators across **major league and college sports** including the **NFL, MLB, NBA, NHL, NCAA**, soccer (MLS and international), **MMA/UFC**, boxing, F1, WNBA, esports, and more. **Verified pick tracking and leaderboards** may be most complete for UFC/MMA; other sports are fully supported for posts, tags, community, and paid creator access. Creators monetize through subscriptions (paid, free, or invite-only). **Fees** and **payout terms** are shown at purchase and in creator tools. Odds or lines, if shown, are for study and transparency only—not gambling. We do not

facilitate real-money wagering or pay outcome-based winnings. All content is for entertainment and informational purposes only.

2. NOT A GAMBLING SERVICE

PicksDb does NOT provide, facilitate, or promote gambling, betting, wagering, or any form of real-money gaming. While we may display odds information and hypothetical tracking features (such as unit calculations) for entertainment purposes, we do NOT pay out any winnings, prizes, or financial returns based on predictions or outcomes. This platform does NOT offer sports betting, fantasy sports for money, or any service where outcomes determine actual financial returns. All odds displays and tracking features are purely for entertainment and discussion purposes only. We do not operate a sportsbook or any gambling-related business. Any hypothetical calculations shown do NOT represent actual money or payouts.

3. No Wagering or Prizes

We do not operate a sportsbook, fantasy contest, or sweepstakes. Users may not place wagers, pay entry fees for outcomes, or receive prizes based on any predictions or content. Attempts to arrange bets, prize pools, or off-platform wagering through the platform are prohibited and may lead to immediate account removal. We do not facilitate gambling of any kind.

3a. PicksDb Coins™ (virtual currency)

PicksDb may award optional in-app virtual currency branded as **PicksDb Coins™** (also described in-product as "coins"). **PicksDb Coins™** have **no real-world monetary value**, are not cash or stored value, cannot be redeemed for money, and cannot be sold or reliably transferred outside flows we expressly provide in the app. PicksDb LLC may modify, balance, reset, or discontinue PicksDb Coins™ or related features at any time. They do not represent stakes, entries, or prizes tied to gambling outcomes. The **PicksDb Coins™** name and related visuals are part of the **PicksDb Marks** (see Intellectual Property below).

4. Acceptance of Terms

By accessing or using PicksDb, you agree to these Terms and our Privacy Policy. If you do not agree, you may not use the service.

5. Eligibility

You must be at least 18 years old to use PicksDb. Users under 18 are not permitted. We do not knowingly collect data from minors. Certain features requiring payments may have additional age restrictions based on your jurisdiction.

6. Accounts & Security

You must provide accurate, current, and complete information when creating an account. You are solely responsible for: (1) safeguarding your login credentials (email, password, authentication tokens); (2) all activity that occurs under your account; (3) maintaining the security of your devices and preventing unauthorized access; (4) immediately notifying us of any unauthorized use or security breach; (5) using strong, unique passwords and enabling two-factor authentication when available. We implement security measures including encryption, access controls, and monitoring, but no system is 100% secure. You acknowledge that we may monitor account activity for security purposes and may suspend or terminate accounts that show suspicious or fraudulent activity.

7. User Content

You retain ownership rights to content you post. By posting, you grant PicksDb a worldwide, non-exclusive, royalty-free license to host, store, display, reproduce, modify, distribute, and sublicense your content in connection with operating, promoting, and improving the service. This license includes the right to use your content to operate, promote, and improve the Service. You represent that you have all rights necessary to grant this license. You agree **not** to post content that infringes third-party intellectual property or publicity rights, or that uses league, team, or event logos or marks in a way that suggests sponsorship, endorsement, or official partnership. Tags and descriptions should accurately reflect your content. You are solely responsible for your content and for obtaining any permissions required for third-party materials.

8. Live & social features (chat, messaging, streaming)

PicksDb provides **social and real-time features** that may include direct messages, posts, feeds, **group chats, live chats (public or private), threads (public or private)**, profiles, following, and notifications. These features exist **only for community discussion and entertainment purposes**—not for gambling, crisis counseling, professional advice, or emergency services.

Public (Global) live chats and threads. When you create a live chat or thread you choose Public (Global) or Private. Public rooms are **discoverable to every PicksDb user** on Browse → Chat and on the host's profile, require a thumbnail/cover photo, and may be moderated by PicksDb in addition to the host. Anything you post in a public room may be viewed, screenshotted, quoted, or reported by anyone in the community. Private rooms (DMs and invite-only / subscriber-only rooms) are visible only to invited participants.

Picks Marketplace. The Picks Marketplace lets creators sell paid access to their picks, analysis, group chats, live chats, threads, comments, and DMs via monthly subscription tiers (\$4.99/mo up to \$100,000/mo; free tiers allowed). Subscriptions buy **access to content and opinions only** — not bets, stakes, prize pools, or any outcome-based return. Creators are independent users, not PicksDb employees, and are solely responsible for their content. See sections on Creator Content Marketplace, Payments, and Fees for full details.

Your responsibility. You are solely responsible for all content you transmit or display, including text, images, audio, video, and links. You must comply with these Terms, our community standards, and applicable law.

No broadcast warranty. We do not guarantee uninterrupted, error-free, or private chats or streams. Content may be recorded, logged, or moderated; **do not expect confidentiality** in public or semi-public rooms.

8a. Groups, live chats & who owns them

PicksDb owns the platform. The PicksDb app, software, brand, and group/live/thread **features** are owned and operated by **PicksDb LLC**. Users do **not** acquire ownership of PicksDb, its code, or the Service by creating or joining a group.

User-created rooms. Group chats, live chats, and threads are created by users or creators ("hosts"). A host may set a name, description, sport/category, cover image, and access rules (open, subscriber-only, or invite-only). **Hosts do not own PicksDb** and must not represent a room as an official league, team, or PicksDb-operated channel unless we authorize that in writing.

User content in groups. Messages, media, and other material in a group remain **your content** (subject to the license you grant PicksDb in Section 7). Group names and branding chosen by hosts must not infringe third-party trademarks or imply false affiliation with any league, team, or brand.

Host tools vs PicksDb control. Hosts may invite, approve, or remove members and moderate discussion within features we provide. PicksDb LLC may **at any time** review, restrict, archive, close, or delete any group, live chat, or thread; remove messages; or suspend hosts or members who violate these Terms or applicable law.

Pick groups. “Pick group” chats are ongoing fan or creator spaces for sharing opinions and entertainment—they are **not** official sportsbook, league, or gambling products, and they do not pay real-money prizes based on outcomes.

8b. Chat safety, moderation & reporting

PicksDb is committed to reasonable safety measures for chats and social features. **We are not a substitute for emergency services or mental health professionals.** If you or someone else is in immediate danger, call **911** (or your local emergency number). See our [Privacy Policy](#) for crisis resources including the **988 Suicide & Crisis Lifeline**.

Tools we provide. The Service includes in-app tools to **report** posts, comments, messages, and users; **block** other users; and mute or leave rooms. Reports are reviewed by automated systems and/or human moderators.

What we do when you report. We aim to review reports of objectionable content or abusive behavior and take action **within 24 hours** where practicable, including removing content, restricting features, closing rooms, or suspending or terminating accounts. Response times may vary by volume, severity, and legal process. We may preserve reports and related data as described in our Privacy Policy.

Prohibited in chats. You may not use chats to harass, threaten, bully, promote self-harm or violence against others, share illegal content, coordinate gambling, sexually exploit minors, or post content that violates these Terms. Content encouraging suicide or violence may be removed and referred to authorities where required by law.

Monitoring. We do **not** guarantee real-time monitoring of all messages. We may use automated filters, user reports, and human review; we may access and store communications for safety, moderation, fraud prevention, and legal compliance. Blocked users’ content is removed from your view promptly where technically feasible.

No duty to monitor. Except where required by law, PicksDb does not undertake to monitor all user communications and is not responsible for user-to-user disputes or off-platform conduct.

8c. Entertainment purposes only (entire Service)

The Service—including posts, picks, odds displays, leaderboards, coins, creator subscriptions, groups, live chats, and threads—is offered for **entertainment, social connection, and informational discussion only**. Nothing on PicksDb is professional sports betting advice, financial advice, medical advice, mental health treatment, or legal advice. Creators are independent users, not employees or agents of PicksDb LLC. You use the Service at your own risk.

9. Prohibited Conduct

Prohibited activities include: illegal activity; harassment; hate speech; credible threats; content that promotes self-harm or suicide; encouraging violence; doxxing; spam; **scraping, bulk harvesting, mirroring, or automated collection** of the Service, user profiles, messages, streams, or data; **buying, selling, loaning, or sharing accounts or credentials**; credential stuffing or takeover attempts; unauthorized access; circumventing technical limits, rate limits, or authentication; match-fixing discussions; promoting offshore gambling sites; organizing private betting groups; money transfer scams; **theft or misappropriation of PicksDb's or any third party's intellectual property**; or attempts to compromise security or manipulate the Service. Avoid slurs and excessive profanity; we reserve the right to filter certain words to keep conversations professional and welcoming.

9a. Scraping, automation & misappropriation

You may not use bots, crawlers, scrapers, headless browsers, scripts, extensions, or other **automated or bulk means** to access, copy, extract, download, index, train models on, or monitor the Service or its data (including user-generated content, metadata, feeds, APIs, streams, or direct messages) except through interfaces and limits we **expressly authorize in writing**. You may not frame, mirror, or substantially duplicate the Service or strip our branding. You may not interfere with the normal operation of the Service or impose an unreasonable load on our systems.

Consequences. Violations may result in **immediate suspension or permanent termination** of your account, blocking of associated devices or networks, referral to payment and fraud partners, **civil enforcement** of our intellectual property and contractual rights, and referral to **law enforcement** where we reasonably believe computer fraud, unauthorized access, identity crimes, or other unlawful conduct has occurred.

10. Anti-Money Laundering & Organized Crime Prevention

PicksDb strictly prohibits and actively monitors for activities related to money laundering, terrorist financing, organized crime, fraud, or any illegal financial transactions. Users are PROHIBITED from: (1) using the platform to launder money or conceal the source of funds; (2) facilitating transactions related to organized crime, terrorism, or illegal activities; (3) using stolen payment methods, fraudulent accounts, or identity theft; (4) structuring transactions to avoid reporting requirements; (5) using the platform to facilitate any illegal financial scheme. We monitor transactions, verify user identities, and report suspicious activity to law enforcement and financial authorities as required by law. We may freeze accounts, suspend transactions, and require additional verification for any activity that appears suspicious. Violations result in immediate account termination, legal action, and reporting to law enforcement agencies including the financial authorities as required by law. By using PicksDb, you represent that all funds used are from legitimate sources and that you are not involved in any illegal financial activities.

10a. Illegal conduct & cooperation with authorities

PicksDb is not a venue for planning, promoting, or carrying out crime. You may not use the Service to facilitate **illegal drugs or controlled substances** (including sales, distribution, or solicitation), **weapons offenses** where unlawful, **human exploitation, fraud or identity crimes**, credible threats of violence, stalking, or other activity that violates applicable criminal law.

If we have a **good-faith belief** that content or conduct may violate criminal law or present a serious risk to safety—subject to applicable law—we may **investigate, preserve relevant records, remove content or restrict accounts**, and **refer the matter to appropriate governmental authorities**, including, where jurisdiction and facts warrant, **U.S. federal law enforcement** (for example, the Federal Bureau of Investigation for matters within its remit), **state or local agencies**, and **competent foreign authorities** when legally required or appropriate. We may also respond to compulsory legal process as described in our [Privacy Policy](#). **We do not monitor all communications in real time and are not obligated to report any particular matter; reporting decisions are made in our discretion subject to legal duties.**

11. Prohibited Gambling Activity

Users are strictly prohibited from: discussing bets, parlays, or hedging strategies; sharing sportsbook slips or betting receipts; requesting betting instructions or advice; coordinating gambling activity with

other users; sharing win rates, ROI, or betting results; posting performance records or tracking outcomes; linking to sportsbooks or gambling sites; discussing any financial outcomes related to off-platform gambling activity. Violations result in immediate account termination.

12. Content is Entertainment Only

All creator content, predictions, and analysis are non-expert opinions for entertainment and discussion purposes only. Nothing on PicksDb constitutes betting, financial, or professional advice. There are NO guarantees, promises, or claims about outcomes. We make no representations about the quality, reliability, or usefulness of any content. You are solely responsible for your use of information.

13. Sports Leagues, Trademarks & No Affiliation

PicksDb is an **independent** platform. We are **NOT** affiliated with, endorsed by, sponsored by, partnered with, licensed by, or authorized by the UFC, Zuffa LLC, TKO Group Holdings, the NFL, NFL Properties LLC, the NBA, MLB, NHL, NCAA, FIFA, its member leagues, any team, promotion, athlete, broadcaster, or sportsbook unless we expressly state otherwise in writing.

UFC®, NFL®, NBA®, MLB®, NHL®, NCAA®, team names, league logos, event names, and similar marks are trademarks of their respective owners. We reference them only to identify real public events and support fan discussion under nominative fair use—not to imply endorsement. We do **not** sell, license, or commercially exploit third-party trademarks, proprietary broadcasts, or official league content.

Rights-holder inquiries: support@picksdb.com.

13a. User Responsibilities — Leagues & Intellectual Property

When using PicksDb you agree that you will **not**: (1) represent yourself as an employee, agent, partner, or official representative of any league, team, promotion, athlete, broadcaster, or sportsbook; (2) use official league, team, or event logos or trade dress without permission from the rights holder; (3) upload broadcasts, paywalled streams, or other content you do not have rights to use; (4) misstate that PicksDb or any creator has an official data license or league partnership; or (5) use athlete names, images, or likenesses for commercial endorsement you are not authorized to provide. PicksDb may remove content and suspend accounts that violate these rules or receive valid complaints from rights holders.

13b. No Broadcast or Official Event Rights

PicksDb does **not** stream live or archived games, pay-per-view, or official league broadcasts. We do **not** sell tickets, official merchandise, or league-authorized products unless expressly stated in a separate written agreement. Links to third-party sites are for convenience only; we do not control those sites and are not responsible for their content or terms.

13c. Platform Role & Third-Party Content

Except for PicksDb's own materials, content on the Service is created by users and creators, not by PicksDb. We do not pre-screen all content and do not endorse user opinions, picks, or analysis. We may remove content or terminate accounts that violate these Terms or applicable law. If you believe content infringes your rights, contact support@picksdb.com with sufficient detail for us to evaluate your request.

13d. Sports Data

Schedules, stats, records, and results may come from publicly available sources. Coverage varies by sport; UFC/MMA data and verified pick scoring may be more complete than other leagues. We are not an official data partner of any league unless stated in writing. Data is provided "as is" and is not professional, financial, or gambling advice.

13e. Other Sports & Major Leagues (NFL, MLB, NBA, NHL, MMA, and More)

PicksDb is built for every sport—not only MMA. Fans and creators use the Service for professional and college sports, combat sports, and culture content. The list below is illustrative, not exclusive.

Leagues and sports you may see discussed on PicksDb include, without limitation:

- **Football:** NFL®, NCAA® / college football, CFL, and related events (PicksDb is **not** affiliated with the NFL, NFL Properties LLC, the NCAA, or any conference or team)
- **Baseball:** MLB®, MiLB, college baseball, and related events (PicksDb is **not** affiliated with MLB or Major League Baseball clubs)

- **Basketball:** NBA®, WNBA®, NCAA® / college basketball, and related events (PicksDb is **not** affiliated with the NBA, WNBA, NCAA, or any team)
- **Hockey:** NHL® and related events (PicksDb is **not** affiliated with the NHL or any club)
- **Soccer / football:** FIFA®, MLS®, international leagues and tournaments (PicksDb is **not** affiliated with FIFA, MLS, or any member association or club)
- **Combat sports:** UFC®, boxing, and other promotions (PicksDb is **not** affiliated with UFC, Zuffa LLC, TKO Group Holdings, or any promotion)
- **Other:** motorsports (e.g., F1®, NASCAR®), tennis, golf, esports, and general sports culture

What PicksDb does and does not own. PicksDb LLC owns the PicksDb app, brand, and original software—not the NFL, MLB, NBA, NHL, NCAA, UFC, team names, league logos, uniforms, or official statistics databases. All such names and marks remain the property of their owners.

Why we reference major leagues. Users post picks, watch-alongs, and analysis about real games and events. Referencing “NFL,” “Super Bowl,” team names, player names, “World Series,” “NBA Finals,” fight cards, and similar terms is permitted on the Service only for **identification, commentary, and fan discussion** under applicable law (including nominative fair use). It must **not** suggest that PicksDb or any user is sponsored by, licensed by, or officially connected to that league or team.

Features by sport. Posts, tags, live chats, group chats, threads, and creator subscriptions work across these sports. Verified pick scoring and leaderboards may be fullest for UFC/MMA today; **all other listed sports are supported** for social content, community, and monetization even when automated scoring is limited or unavailable.

Protection for rights holders. If you represent a league, team, or other trademark owner and believe any use on PicksDb is improper, contact support@picksdb.com. We review good-faith complaints and may remove content or accounts that infringe third-party rights.

14. Odds Display & Sportsbook Non-Affiliation

PicksDb may display betting odds information from third-party sources (including sportsbooks and odds aggregators) for informational and entertainment purposes only. These odds are displayed solely to provide context for discussions about upcoming events and are NOT gambling advice, betting recommendations, or invitations to gamble. PicksDb is NOT affiliated with, endorsed by, sponsored by, or authorized by any sportsbook, gambling operator, or odds provider. We do NOT facilitate actual betting, place wagers on your behalf, or process any gambling transactions. We do NOT receive commissions, referral fees, or any compensation from sportsbooks or gambling operators. Any odds

displayed are for editorial/informational purposes only and do NOT constitute an endorsement of any sportsbook or gambling service. PicksDb does NOT pay out any winnings, provide any actual betting services, or facilitate real-money gambling. All odds and tracking features are for entertainment and discussion purposes only.

14a. PicksDb Leaderboard™ & rankings

The Service may display rankings, scores, tiers, or leaderboards under the **PicksDb Leaderboard™** feature and related UI (collectively, the “**Leaderboard**”). Leaderboard data is generated by PicksDb LLC using rules, formulas, and inputs described or referenced in the app. Leaderboards are **informational and for community engagement only**. They are **not** gambling outcomes, sweepstakes results, prizes, endorsements of any user or creator, or verified performance claims. Rankings may change at any time; methodology may change with notice where required. **Past or displayed rankings do not predict future results**. The **PicksDb Leaderboard™** name and presentation are part of the **PicksDb Marks**.

15. No Performance Claims Disclaimer

PicksDb does NOT verify, validate, or endorse the quality, accuracy, outcomes, or claims made by any creator content. While we may display hypothetical tracking information for entertainment purposes, we do NOT track actual performance, results, win rates, or outcomes for the purpose of validating creator content. We do NOT provide tools for verifying the accuracy of predictions or measuring actual betting outcomes. Any claims about performance, results, or outcomes made by creators are their own opinions and are not verified by PicksDb. We are not responsible for any off-platform use of content.

16. Creator Content Marketplace

PicksDb operates as a content creator platform where users can subscribe to creators to access their picks, predictions, and analysis for entertainment purposes. If you purchase subscriptions or content from creators, you pay for access to their opinions, picks, and analysis only. Payments are NOT stakes, entries, or fees tied to actual betting outcomes. Payments are for content access only. We do NOT pay out any winnings based on predictions or outcomes. We do NOT offer refunds based on content outcomes or prediction accuracy. All creator content is for entertainment and discussion purposes only.

17. Creator Terms & Identity Verification

Creators selling content must undergo identity verification through our payment partner. Creators must not use false credentials or mislead users. Creators agree not to arrange private betting groups, promote offshore books, link to sportsbooks, or facilitate gambling off-platform. Violations result in immediate termination and may lead to legal action. All creator content must comply with these Terms.

18. Prohibited Creator Content

Creators are STRICTLY PROHIBITED from: posting win rates, performance records, outcome tracking, or results; providing betting strategies, advice, or instructions; claiming guaranteed outcomes or guaranteed wins; using terms like "lock," "guarantee," "guaranteed win," "can't lose," "win rate," phrases implying guaranteed success or financial gain, "sure thing," "high accuracy," "proven system," or similar claims; showing past results, ROI, or success rates; making any claims about reliability, accuracy, or performance; linking to sportsbooks or gambling sites; discussing any financial outcomes related to off-platform gambling activity. Violations result in immediate account termination.

19. No Financial Advice or Outcomes

PicksDb is for entertainment and community discussion only. We do NOT offer gambling services, betting advice, or financial advice. Nothing on PicksDb constitutes betting, wagering, or financial advice. This platform is a content marketplace where creators monetize their opinions and picks. We do NOT pay out any winnings, prizes, or financial returns based on predictions or outcomes. Any hypothetical tracking or unit calculations shown are for entertainment purposes only and do NOT represent actual money, winnings, or payouts. Users acknowledge that all content, odds displays, and tracking features are for entertainment purposes only and that PicksDb does NOT facilitate actual betting or provide any financial returns.

20. Paid features; payment partners; Apple & Google (in-app purchases)

Some features are paid. Prices, renewal terms, and taxes (if any) are shown at purchase. Depending on how you pay, processing may be handled by a licensed payment partner, **Apple** (in-app purchase on Apple devices), **Google** (Google Play billing), or another processor identified at checkout.

Payment partners. When a payment partner processes your payment, you agree to their applicable agreements and privacy notices shown at checkout. PicksDb LLC is not a bank or money transmitter.

Apple in-app purchases. If you buy through the Apple App Store, your purchase is between you and **Apple**, and additional terms apply, including Apple's **Licensed Application End User License Agreement** and **Apple Media Services Terms and Conditions** (U.S.: apple.com/legal/internet-services/itunes/us/terms.html — use the version for your region if different). **Refund and billing disputes for Apple IAP are governed by Apple's policies**, not by PicksDb alone.

Google Play. Purchases through Google Play are subject to **Google Play's Terms of Service** and payment/refund policies (see [Google Play terms](#) for your region).

21. No refunds; billing issues; disputes & claims

General. Except where **applicable law requires** otherwise, **all fees are non-refundable**. Digital content and subscription access fees are **final** once charged, subject to the dispute paths below.

Contact us first (not a guarantee of refund). You may email support@picksdb.com to describe a billing or access problem. We may investigate and, at our sole discretion, offer a good-faith resolution where appropriate. **Contacting support does not obligate PicksDb LLC to issue a refund.**

Card and payment-partner disputes. For charges processed by a payment partner, disputes and chargebacks are handled through that partner and your bank or card network. Outcomes are not solely decided by PicksDb LLC. If a charge is reversed, access to paid features may be revoked and creator balances may be adjusted per the payment partner's rules.

Apple and Google. For App Store or Google Play purchases, you must use **Apple's "Report a Problem"** or refund request flows, or **Google Play's refund process**, as described in their current policies. We do not control Apple's or Google's refund decisions.

Subscriptions. You may cancel subscriptions according to the platform (PicksDb, your payment partner's customer portal where offered, Apple subscriptions, or Google Play). Cancellation stops renewal; it does not automatically refund past periods unless required by law or the applicable store policy.

22. Creators, payouts, tax & chargebacks

If you use creator features, payouts and identity verification are handled by our licensed payment partners. You agree to their terms and privacy policy. PicksDb LLC does not store your full bank details on our servers. You are responsible for your tax reporting and compliance.

Chargebacks and disputes. If a subscriber initiates a chargeback or dispute, funds may be reversed and your creator balance may be adjusted in line with our payment partner's rules and these Terms. You authorize us and our partners to offset or recover such amounts as permitted by law.

22a. Creator Shop (PicksDb Shop)

Platform only. PicksDb Creator Shop lets verified creators with a linked payout bank list products on their profile. Fans may purchase through optional **in-app checkout** (Stripe / Apple Pay / card) and/or outbound links to **Amazon** or other retailers where the creator participates in an affiliate program. **PicksDb LLC is a platform provider** — not the seller of record for creator listings, not a party to Amazon Associates agreements, and not the buyer's merchant for Amazon purchases. Creators are independent users, not employees or agents of PicksDb.

Seller responsibilities (creators)

- You must upload a **real photo of the exact product** being sold for every listing. Stock photos, unrelated images, or misleading visuals are prohibited.
- Titles, prices, descriptions, badges (e.g. "Free shipping"), and discount labels must accurately describe the item and purchase path.
- You may not list counterfeit, stolen, prohibited, or mislabeled merchandise (including weapons, drugs, adult content, medical claims, or items you cannot lawfully ship).
- For **in-app checkout**: you are the **seller of record**. You must ship promptly, provide accurate tracking when applicable, honor stated return policies, and respond to buyer issues.
- You must enable **Creator mode** and link a **verified payout bank** before in-app checkout is enabled on your shop.
- You are solely responsible for order fulfillment, customer communication, sales tax obligations where applicable, income reporting, and compliance with consumer-protection, shipping, and advertising laws.
- You must accept PicksDb's seller integrity policy and Amazon/affiliate disclosures in Shop settings before publishing listings.

Amazon Associates & third-party affiliate links

- If you add Amazon product links or an Associates tracking tag, you participate in Amazon's program **on your own behalf** — not as an employee, agent, or representative of PicksDb LLC.
- You must maintain your own approved Amazon Associates account, comply with the [Amazon Associates Program Operating Agreement](#) and related policies, and follow applicable [FTC endorsement and disclosure rules](#) when promoting products to fans (e.g. clear #ad, paid link, or commission-earned disclosures).
- When a fan taps "Buy on Amazon," they leave PicksDb and complete purchase on Amazon. PicksDb does not process Amazon payments and does not receive Amazon commission data.
- Amazon pays affiliate commissions directly to you under Amazon's rules. PicksDb only logs outbound click events for analytics — not sales or commission amounts.
- You may only use affiliate tags and links you are authorized to use. In-app checkout on PicksDb is a separate transaction from Amazon Associates.
- You agree to **indemnify and hold harmless PicksDb LLC** from claims, fines, or damages arising from your affiliate activity, failure to disclose material connections, violation of Amazon or consumer-protection rules, or misrepresentation of products.

In-app shop payments & order recording

- In-app purchases are processed by licensed third-party payment partners (e.g. Stripe). PicksDb does not store full card numbers.
- Order records include payment timestamps, payment method metadata (e.g. Apple Pay, card brand/last four), shipping address, product snapshots, deal/discount labels at time of purchase, and Amazon ASIN/URL snapshots for creator reference.
- Payments are confirmed through the app and backed by payment-partner webhooks. Buyers may use "Recover my order" if charged but missing an order.
- Creators receive net earnings in their creator balance subject to platform and processing fees, then withdraw via Stripe Connect to a verified bank.
- Chargebacks on shop orders may debit creator balances. Shop earnings are separate from Amazon Associates commissions, which Amazon pays directly to creators.

Buyer terms (fans)

- In-app purchases buy goods from the **creator who listed them** — not from PicksDb LLC. PicksDb provides checkout technology, order records, and buyer-support channels.
- Amazon link purchases are completed on Amazon under Amazon's terms. PicksDb is not the merchant and cannot issue Amazon refunds — use Amazon's return process.

- **Before you pay:** closing the Apple Pay or card sheet before confirming never creates a charge or order.
- **After you pay:** your order appears under Shop → Your orders. If charged but missing, use **Recover my order** before contacting your bank.
- **Returns & refunds (in-app):** submit a claim in Your orders within 30 days of delivery (or 30 days after payment if never shipped). Support reviews eligible issues (missing, wrong, damaged, duplicate charge). Approval is not guaranteed except where required by law.
- Apple IAP shop purchases may require Apple's Report a Problem flow for refunds.
- Shop Protection language in the app describes eligibility guidelines — not unlimited guarantees.
- Report inaccurate listings or fraud to support@picksdb.com with order details.

Returns, refunds & claims

- **Who is the merchant:** for in-app checkout, the creator is the seller of record. For Amazon links, Amazon (or the Amazon seller) is the merchant.
- **When you are charged:** only after confirming in the secure Stripe payment sheet. Cancel before confirm = no charge.
- **If something goes wrong:** (1) Recover my order, (2) Submit a claim from Your orders (max 2 per order), (3) email support@picksdb.com.
- **Refund eligibility:** missing orders, never shipped, wrong/damaged items, duplicate charges — generally within 30 days, subject to investigation.
- **Approved refunds** return to the original payment method (typically 5–10 business days).
- Contact support before initiating chargebacks so we can investigate with the creator and payment partner.

Fraud, misrepresentation & enforcement

PicksDb monitors listings and buyer reports for fraud, bait-and-switch behavior, and policy violations. We may immediately remove listings, suspend or permanently ban accounts, withhold or reverse payouts, and preserve evidence. Serious or repeated violations may be reported to payment processors (Stripe, Apple), consumer-protection authorities, rights holders, and law enforcement where required or permitted by law. Misrepresentation and fraud may be punishable under applicable consumer-protection and criminal statutes. **Sellers — not PicksDb — are primarily liable for their listings and conduct.** IP/counterfeit reports: rights holders may email support@picksdb.com with identification of the work, the listing, and authorization to act.

PicksDb provides shop tooling and payment processing through licensed third parties. We do not pre-verify every product image or Amazon link, do not guarantee Amazon program approval or commission attribution, and are not responsible for Amazon Associates compliance on your behalf.

23. Intellectual Property & PicksDb Marks

The **Service**—including our mobile and web applications, software, **logos and word marks**, visual design, user interface, screens, icons, default artwork we provide, audio/visual templates, documentation, and original text we publish—is owned by **PicksDb LLC** or its licensors and is protected by **copyright, trademark, trade dress, and other intellectual property laws**.

App, brand & product identity. Our **application packages** (including binaries, builds, store listings, splash and onboarding flows, and in-app artwork we supply), **marketing and press materials**, and the **overall product concept, positioning, and curated feature set** of PicksDb are proprietary to PicksDb LLC. You may not copy or imitate them to create a confusingly similar app or service, remove or alter our copyright or trademark notices, or falsely suggest sponsorship or affiliation.

Platform concept & compilation. The **selection, coordination, and arrangement** of features (including how creator content, community tools, live and social experiences, leaderboards, and discovery are presented) and the **overall look and feel** of the PicksDb product constitute valuable intellectual property of PicksDb LLC. You may not copy, imitate, or misappropriate the Service or its distinctive elements to operate a confusingly similar product or service.

PicksDb Marks. The names, **logos**, product identifiers, and trade dress **PicksDb, PicksDb™, PicksDb Leaderboard™, PicksDb Coins™**, and other PicksDb-branded features we designate (collectively, the **"PicksDb Marks"**) are trademarks, service marks, or trade dress asserted by **PicksDb LLC** in the United States and other jurisdictions. We use **™** to signal common-law or pending rights; we use **®** only where a registration has been granted. You may not use the PicksDb Marks in a way that suggests sponsorship, partnership, or endorsement by PicksDb LLC without our prior written consent, except for fair nominative use to refer truthfully to the Service.

No transfer to you. These Terms do not grant you any ownership interest in the PicksDb Marks, our software, or our product concept. All rights not expressly granted are reserved.

Third-party marks. League names, team names, athlete and event names, and other third-party marks on the Service remain the property of their owners. PicksDb LLC does **not** claim ownership of NFL, NBA, MLB, NHL, NCAA, UFC, FIFA, team, or athlete trademarks. References are for identification

and editorial discussion under applicable law (including nominative fair use) and do not imply affiliation or endorsement.

Federal registration. Trademark rights are strengthened through use and, where appropriate, **federal registration with the USPTO**. PicksDb LLC may pursue registration for the PicksDb Marks; absence of a registration symbol does not waive our rights.

24. DMCA Copyright Policy

PicksDb respects intellectual property rights. If you believe your copyright has been infringed, send a DMCA takedown notice to support@picksdb.com with: (1) identification of copyrighted work; (2) location of infringing material; (3) your contact information; (4) statement of good faith; (5) statement of accuracy; (6) your signature. We will respond to valid notices and may terminate repeat infringers. If you believe content was wrongly removed, you may send a counter-notification.

25. Termination

We may suspend or terminate accounts or access that violate these Terms—including, without limitation, for **scraping or automated abuse, theft, sale, or misuse of accounts or credentials, intellectual property infringement or misappropriation**, conduct covered in **Section 10a**, credible threats, harassment, fraud, gambling facilitation, or repeated policy breaches—with or without prior notice where permitted by law. You may stop using PicksDb at any time. Provisions that by their nature should survive (including intellectual property, disclaimers, limitations of liability, arbitration, and governing law) survive termination.

26. Disclaimers

PicksDb is provided "as is" without warranties of any kind, express or implied. We do NOT guarantee, verify, or validate any user content, creator content, or any information on the platform. We do NOT guarantee the quality, reliability, or usefulness of any content. You use the service at your own risk.

27. Limitation of Liability

To the maximum extent permitted by law, **PicksDb LLC** is not liable for indirect, incidental, or consequential damages. PicksDb LLC is NOT liable for: (1) any harm resulting from user-to-user communications, chat messages, or social interactions; (2) any content posted by other users; (3) any

interactions between users; (4) any loss of data, privacy breaches, or security incidents; (5) any decisions made based on user content or communications; (6) any offline meetings or relationships formed through the platform. You use chat, messaging, and social features at your own risk. PicksDb LLC does not guarantee the safety, accuracy, or legality of any user communications.

28. Governing Law & Disputes

These Terms are governed by the laws of the United States, without regard to conflict of law principles. **Payment disputes:** If your dispute concerns a charge processed by a payment partner, Apple, or Google, you may need to use their dispute, chargeback, or refund procedures first as described in Section 21.

Other disputes arising from these Terms or your use of the Service (except where prohibited by law) shall be resolved through **binding arbitration** administered by the American Arbitration Association (AAA) under its **Consumer Arbitration Rules** (or successor rules for consumer disputes). You waive any right to a jury trial and agree that disputes will be resolved individually, not as part of a class action, class arbitration, or representative proceeding. YOU AGREE TO WAIVE YOUR RIGHT TO PARTICIPATE IN ANY CLASS ACTION OR CLASS ARBITRATION. If the class action waiver is found unenforceable, the arbitration clause shall be void but the rest of the Terms remain in effect. Small claims court actions are permitted for claims under \$10,000. The arbitration shall take place in the United States.

29. Security & Data Protection

We implement commercially reasonable security measures including encryption in transit and at rest where supported, secure authentication, access controls, fraud monitoring, and payment processing through licensed partners. However, no method of transmission or storage is 100% secure. You are responsible for maintaining strong credentials and reporting suspicious activity. We do NOT guarantee the security or privacy of communications sent through chat, messaging, or social features. Do not share sensitive information through these features.

30. Changes to These Terms

We may update Terms. Continued use after changes means you accept the updated Terms.

31. Contact

Questions? Contact support@picksdb.com.

32. Freedom of Expression

We value open discussion and do not remove content merely for holding a viewpoint. However, all content must comply with these Terms and applicable law. We may limit or remove content (and/or accounts) that includes targeted harassment, hate speech, or otherwise violates our policies.

33. Moderation & Enforcement

We enforce these Terms through warnings, temporary restrictions, and bans. Severe violations (e.g., credible threats, hate speech, doxxing, gambling facilitation, match-fixing discussions, money scams, prohibited gambling activity, **scraping or systematic data theft, sale or solicitation of illegal drugs or other unlawful goods or services**) may result in immediate suspension or permanent removal. Automated systems and human review may be used to detect prohibited content and behavior. You can appeal enforcement decisions by contacting support@picksdb.com. See **Section 10a** regarding voluntary cooperation with authorities where criminal activity may be involved.

34. Content Moderation & Removal Rights

PicksDb reserves the right to: delete any posts, comments, messages, chat messages, direct messages, or content that violates these Terms; suspend or terminate user accounts for any violation; remove creator accounts for prohibited content; restrict access to features; enforce policies without prior notice; remove content at our sole discretion; take legal action against violators. We are not required to provide warnings before removal. You acknowledge that we have full discretion to moderate content. We may monitor, review, and remove communications (including private messages) for safety, moderation, and legal compliance.

35. User Interactions & Communications

PicksDb provides chat rooms, direct messages, live chat streams, threads, and social features that enable user-to-user communication. You are solely responsible for: (1) all communications you send to other users; (2) your interactions with other users; (3) any relationships or meetings you arrange with other users; (4) any harm that results from your communications or interactions. PicksDb is NOT

responsible for: (1) the content, accuracy, or legality of user communications; (2) any harm resulting from user-to-user communications or interactions; (3) any offline meetings or relationships formed through the platform; (4) any disputes between users; (5) any harassment, abuse, or illegal activity by other users. We do NOT guarantee the identity, age, or intentions of other users. Use caution when communicating with other users. Do NOT share personal information, financial details, passwords, or sensitive data. Report abusive or illegal behavior immediately. We are not liable for any consequences of your interactions with other users.

36. Age, Location & Compliance

You must meet the minimum age requirements in your jurisdiction (typically 18+). Certain features may be geofenced or unavailable where required by law. You agree not to use PicksDb to violate gambling, gaming, or other applicable laws.

Contact Information

Email: support@picksdb.com

For Legal Inquiries: support@picksdb.com

For DMCA Notices: support@picksdb.com

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